

LEGAL — FIRST-TIER TRIBUNAL DECISION

706 Holly Court — Rent Repayment Order Decision (FTT 2019)

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FIRST-TIER TRIBUNAL

PROPERTY CHAMBER

(RESIDENTIAL PROPERTY)

Case Reference : LON/00AL/HMK/2019/0033

Property : 7TH Floor flat, 706 Holly Court, John Harrison Way, London SE10 0BL

Applicants : (1) Zak Baker (2) Max Ansell-Wood (3) Benjamin Gale (4) Tim Farrell

Representative : Miss Lennox of BPP Legal Advice Clinic

Respondents : (1) Marc Evans (leaseholder) (2) Pacific Estate Agents (3) Easy Room4You-UK Limited

Representative : Mr Shaw for the Second Respondent; First and Third Respondents did not attend and were not represented

Type of Application : Application for a rent repayment order by tenants

DECISION

Introduction

1. This is an application made by the Applicants under section 41 of the Housing and Planning Act 2016 ("the Act") for a rent repayment order against the Respondents.

2. The contractual relationships between the Respondents were as follows. The First Respondent is the leasehold owner of 7TH Floor flat, 706 Holly Court, John Harrison Way, London SE10 0BL ("the property").

By an assured shorthold tenancy agreement he let the property to the Third Respondent for a term of 12 months from 13 November 2016 ("the first agreement"). The rent payable under this agreement by the Third to the First Respondent was £2,502.49 per calendar month.

3. The property was initially managed by OJ Residential on behalf of the First Respondent who were later

succeeded by Pacific Estate Limited as the managing agent. It was common ground that neither OJ Resid
ential nor Pacific Estate Limited received rent from the Applicants on behalf of Mr Evans.

4. Subsequently, the Third Respondent let a room to each of the Applicants under licence agreements dated 20 November 2015, 17 November 2017, 2 April 2018 and 15 November 2018 at a rental sum of £770, £650, £800 and £770 respectively ("the second agreements"). The total rent collected from the Applicants was £2,990 per month.

5. Although the agreements are headed "Licence Agreement", they nevertheless refer to the occupier as being the tenant. However, this does not matter because the Act does not draw a distinction between whether occupation takes place pursuant to a licence or tenancy agreement.

6. It is common ground here that the property was unlicensed at the time it was let to the Applicants by the Third Respondent. The Tribunal was told that the Third Respondent is subject to a penalty of £5,000 imposed by Greenwich Council in relation to the unlicensed letting of the property.

7. On 5 April 2019, the Applicants made this application to the Tribunal seeking a rent repayment order against the Respondents.

Decision

8. The hearing took place on 15 July 2019.

9. In the statement of case prepared by a Mr Gomez on behalf of the Third Respondent, it is accepted that when the property was let to the Applicants it was not in fact licensed when this was a requirement for the letting. The Tribunal is, therefore, satisfied that the Third Respondent had committed an offence under section 72(1) of the Housing Act 2004. It has been convicted and/or fined £5,000 by Greenwich Council for this offence.

10. The Tribunal was also satisfied that a rent repayment order should be made against the Third Respondent.

Award to Applicants:

(a) Mr Baker - 12 months = £2,250
(b) Mr Ansell Wood - 11 months = £2,125
(c) Mr Gale - 12 months = £2,250
(d) Mr Farrell - 6 months = £1,500
Total = £8,125 (plus additional £3,000 deterrence award = total £11,125 increased awards as shown)

Fees: £300 reimbursement ordered.

Name: Tribunal Judge I Mohabir

Date: 15 July 2019